

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 717, As Amended

BY TRANSPORTATION AND DEFENSE COMMITTEE

AN ACT

RELATING TO MOTOR VEHICLES; AMENDING SECTION 49-401A, IDAHO CODE, TO ESTABLISH A FEE; AMENDING SECTION 49-402, IDAHO CODE, TO ESTABLISH A LATE FEE FOR FAILURE TO RENEW VEHICLE REGISTRATION WITHIN THIRTY DAYS AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-401A, Idaho Code, be, and the same is hereby amended to read as follows:

49-401A. OWNER TO SECURE REGISTRATION FROM A COUNTY ASSESSOR OR THE DEPARTMENT. (1) Every owner of a motor vehicle, trailer or semitrailer who intends to operate the vehicle upon any highway in this state shall, before the same is so operated, apply to a county assessor or to the department or an agent of the department and obtain registration for vehicles pursuant to sections 49-402(1) through (3), 49-402A, 49-402B and 49-422, Idaho Code. All others shall be obtained from the department except as provided in subsection (2) of this section. Owners of vehicles specified in section 49-426, Idaho Code, are exempt from the provisions of this section. Owners of vehicles operating on a temporary basis as provided in sections 49-431(3), 49-432 and 49-433, Idaho Code, are exempt from the provisions of this section to the extent that the temporary permits in use are unexpired.

(2) Commercial vehicles in excess of twenty-six thousand (26,000) pounds gross weight, farm and noncommercial vehicles in excess of sixty thousand (60,000) pounds gross weight and all vehicles registered under section 49-435, Idaho Code, shall be registered by the department. All other commercial, farm and noncommercial vehicles and the vehicles in paragraphs (a), (b), and (c) of this subsection shall be registered by the county assessor or by the department or an agent of the department.

(a) Motor vehicles equipped primarily to haul passengers on a commercial basis, doing strictly an intrastate business, and having gross weights of twenty-six thousand (26,000) pounds or less.

(b) Any farm vehicle or combination of vehicles where each vehicle or combination of vehicles shall not exceed a gross weight of sixty thousand (60,000) pounds.

(c) Nonresident vehicles or combination of vehicles owned by transient labor used in hauling unprocessed agricultural products for hire and not exceeding sixty thousand (60,000) pounds gross weight shall register their vehicle for the appropriate gross weight scale for the annual fee if registered on or before June 30 and for one-half (1/2) the annual fee if not registered until on or after July 1 of any year, with the assessor of the county in which the owner resides.

(3) Commercial, farm and noncommercial vehicles of any weight doing strictly an intrastate business may be registered by the county assessor or by the department or an agent of the department by mutual agreement between the department and the county.

(4) Failure to apply for registration for a vehicle within thirty (30) days of becoming a resident, as that term is defined in section 49-119, Idaho Code, shall result in a fee of seventy-five dollars (\$75.00) that shall be deposited in the highway distribution account.

SECTION 2. That Section 49-402, Idaho Code, be, and the same is hereby amended to read as follows:

49-402. ANNUAL REGISTRATION. (1) The annual fee for operating each pickup truck, each neighborhood electric vehicle and each other motor vehicle having a maximum gross weight not in excess of eight thousand (8,000) pounds and that complies with the federal motor vehicle safety standards as defined in section 49-107, Idaho Code, shall be:

Vehicles one (1) and two (2) years old	\$69.00
Vehicles three (3) and four (4) years old	\$57.00
Vehicles five (5) and six (6) years old	\$57.00
Vehicles seven (7) and eight (8) years old	\$45.00
Vehicles over eight (8) years old	\$45.00

There shall be twelve (12) registration periods, starting in January for holders of validation registration stickers numbered 1, and proceeding consecutively through December for holders of validation registration stickers numbered 12, each of which shall start on the first day of a calendar month and end on the last day of the twelfth month from the first day of the beginning month. Registration periods shall expire at midnight on the last day of the registration period in the year designated by the validation registration sticker. The numeral digit on the validation registration stickers shall, as does the registration card, fix the registration period under the staggered registration system for the purpose of reregistration and notice of expiration.

A vehicle that has once been registered for any of the above-designated periods shall, upon reregistration, be registered for the period bearing the same number, and the registration card shall show and be the exclusive proof of the expiration date of registration and licensing. Vehicles may be initially registered for less than a twelve (12) month period, or for more than a twelve (12) month period, and the fee prorated on a monthly basis if the fractional registration tends to fulfill the purpose of the monthly series registration system.

(2) For all school buses operated either by a nonprofit, nonpublic school or operated pursuant to a service contract with a school district for transporting children to or from school or in connection with school-approved activities, the annual fee shall be twenty-four dollars (\$24.00) and shall be subject to staggered registration for the purpose of reregistration and notice of expiration.

(3) For all motorcycles and motor-driven cycles that comply with the federal motor vehicle safety standards, operated on the public highways, the annual fee shall be nineteen dollars (\$19.00) and shall be subject to stag-

1 gered registration for the purpose of reregistration and notice of expira-
2 tion.

3 (4) For operation of an all-terrain vehicle, utility type vehicle or
4 motorbike, excluding a motorbike with an engine displacement of fifty (50)
5 cubic centimeters or less, on city, county or highway district roads or
6 highways open to such use, a restricted vehicle license plate fee pursuant
7 to section 49-450, Idaho Code, shall be paid. In addition, the certifi-
8 cate of number fee specified in section 67-7122, Idaho Code, shall be paid
9 as provided in section 67-7122, Idaho Code. The certificate of number and
10 restricted vehicle license plate exemption provided in section 49-426(2),
11 Idaho Code, applies to all-terrain vehicles, utility type vehicles, motor-
12 bikes and motorcycles used for the purposes described in section 49-426(2),
13 Idaho Code. Nonresidents shall be allowed to purchase a restricted vehicle
14 license plate and validation sticker pursuant to section 67-7124, Idaho
15 Code, for an all-terrain vehicle, utility type vehicle, or motorbike.

16 (5) For all motor homes, the fee shall be as specified in subsection (1)
17 of this section and shall be in addition to the fees provided for in section
18 49-445, Idaho Code.

19 (6) Registration fees shall not be subject to refund.

20 (7) A financial institution or repossession service contracted to
21 a financial institution repossessing vehicles under the terms of a secu-
22 rity agreement shall move the vehicle from the place of repossession to the
23 financial institution's place of business on a repossession plate. The
24 repossession plate shall also be used for demonstrating the vehicle to a
25 prospective purchaser for a period not to exceed ninety-six (96) hours. The
26 registration fees for repossession plates shall be as required in subsection
27 (1) of this section for a vehicle one (1) and two (2) years old. All other
28 fees required under chapter 4, title 49, Idaho Code, shall be in addition to
29 the registration fee. The repossession plate shall be subject to staggered
30 registration for the purpose of reregistration and notice of expiration.

31 (8) A wrecker or towing business engaged in the process of towing motor-
32 ized vehicles that have been wrecked, abandoned, salvaged or may be disabled
33 may apply for a wrecker plate to be displayed on those vehicles being towed,
34 provided the power unit is properly registered under this chapter. The reg-
35 istration fees for wrecker plates shall be as required in subsection (1) of
36 this section for a vehicle one (1) and two (2) years old. All other fees re-
37 quired under chapter 4, title 49, Idaho Code, shall be in addition to the reg-
38 istration fee and shall be subject to staggered registration for the purpose
39 of reregistration and notice of expiration.

40 (9) In addition to the annual registration fee in this section, there
41 shall be an initial program fee of twenty-five dollars (\$25.00) and an an-
42 nual program fee of fifteen dollars (\$15.00) for all special license plate
43 programs for those license plates issued pursuant to sections 49-404A,
44 49-407, 49-408, 49-409, 49-414, 49-416, 49-418 and 49-418D, Idaho Code. For
45 special plates issued pursuant to section 49-417E, Idaho Code, there shall
46 be an initial program fee of seventy dollars (\$70.00) and an annual program
47 fee of fifty dollars (\$50.00). For special plates issued pursuant to sec-
48 tions 49-406 and 49-406A, Idaho Code, there shall be an initial program fee
49 of twenty-five dollars (\$25.00) but there shall be no annual renewal fee.
50 For special plates issued pursuant to sections 49-415D, 49-417, 49-417A,

49-417B, 49-417C, 49-417D, 49-418A, 49-418B, 49-418C, 49-419, 49-419A, 49-419C, 49-419E, 49-420, 49-420A, 49-420B, 49-420C, 49-420D, 49-420E, 49-420J, 49-420K, 49-420L, 49-420M, 49-420N, 49-420O, 49-420P, 49-420Q, 49-420R, 49-420S, ~~and 49-420T~~, and ~~49-420T~~ 49-420U, Idaho Code, and unless otherwise expressly provided for in this chapter, any new special plate program effective on and after January 1, 2013, pursuant to section 49-402D, Idaho Code, there shall be an initial program fee of thirty-five dollars (\$35.00) and an annual program fee of twenty-five dollars (\$25.00). The fees contained in this subsection shall be applicable to all new special plate programs and shall be subject to staggered registration for the purpose of reregistration and notice of expiration. The initial program fee and the annual program fee shall be deposited in the state highway account and shall be used to fund the cost of administration of special license plate programs, unless otherwise specified by law.

(10) Any vehicle that does not meet federal motor vehicle safety standards shall not be registered and shall not be permitted to operate on public highways of the state, as defined in section 40-117, Idaho Code, unless otherwise specifically authorized.

(11) In addition to annual registration fees as provided in this section, registrants may pay a fee to purchase an Idaho state parks passport authorizing resident motor vehicle entry into all Idaho state parks. Registrants may pay the fee for a one (1) year or two (2) year period of time. The fee shall be ten dollars (\$10.00) for one (1) year and twenty dollars (\$20.00) for two (2) years. All fees collected pursuant to this subsection shall be deposited into the park and recreation fund and shall be subject to appropriation. Fees collected pursuant to this subsection shall not be considered a motor vehicle registration fee as provided in section 17, article VII of the constitution of the state of Idaho.

(12) Failure to renew a vehicle's registration within thirty (30) days of its expiration shall result in a fee of seventy-five dollars (\$75.00) that shall be deposited in the highway distribution account. The fee described in this subsection does not apply to a vehicle when the owner has informed the department that the vehicle is not in use and will not be operated on highways as defined in section 40-109, Idaho Code. The fee may be waived when renewing or issuing a new registration for that vehicle.

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.